

complaint

Mr J has complained about Groupama Insurance Company Limited's decision to decline his claim for theft under his home insurance policy on the basis that his home was unoccupied at the time of the incident. He is also unhappy with the length of time it took Groupama to explain its decision to him.

background

Mr J discovered that a number of his home contents were missing when he returned to his property having spent time away from the UK. He made a claim under his home insurance policy, believing the items had been stolen by individuals who had visited his home whilst he was away.

Groupama declined the claim on the basis that loss resulting from theft was excluded under the policy where the property was unoccupied. 'Unoccupied' was defined in the policy as when the home was *"(n)ot lived in by you or your family for more than 60 consecutive days."* Mr J complained to Groupama, stating his home had been visited by a friend every two days whilst he was away. Dissatisfied with Groupama's handling of his claim and response to his complaint, Mr J brought a complaint to this service.

Our adjudicator upheld the complaint in part. His view was that having people visit the property whilst Mr J was away from it was not sufficient to satisfy occupancy of the property, and that therefore Groupama had acted reasonably when applying the exclusion to cover for unoccupied properties. However, the adjudicator considered that Groupama had provided Mr J with poor customer service when responding to his questions regarding his claim, and he therefore proposed that Groupama should pay Mr J £100 compensation.

Groupama declined to offer compensation for its service, suggesting that to do so would be unfair on individuals who had experienced similar service but had chosen not to complain.

Mr J responded by stating that the exclusion for theft where a property is unoccupied had not been brought to his attention. A complaint relating to the sale of the policy is being considered under a separate reference number to this one.

my findings

I have considered all the available evidence and arguments to decide what is fair and reasonable in the circumstances of this complaint.

Whilst I am sorry to learn of the loss that Mr J has suffered, I would agree with the adjudicator that the regular visits by individuals that Mr J arranged to take place whilst he was away from his home would not on balance constitute the property being lived in. In the circumstances, my view is that the property was unoccupied as defined under the policy. Consequently, I do not consider that Groupama acted unreasonably when declining the claim for theft on the basis that such cover was excluded whilst the property was unoccupied.

With regard to the service Mr J received when he asked for clarification from Groupama about its reasons for declining his claim, my view is that the length of time taken to provide a comprehensive response to Mr J was excessive. In responding to the adjudicator's proposal that it pay £100 compensation to Mr J to reflect the poor service provided to him, Groupama

does not appear to have disputed the poor quality of the service. It has however suggested that to pay Mr J compensation might not be fair on others who do not raise a complaint.

I am surprised by Groupama's comments. Whether or not others choose to complain about poor service they receive from a business has in my view no bearing upon whether Mr J should receive compensation for inconvenience caused by Groupama. I consider the service provided by Groupama to Mr J was poor, with unnecessary delays inconveniencing him as he sought a more detailed explanation of Groupama's position regarding his claim. Bearing in mind that awards made by this service for distress and inconvenience caused by a business are in general modest, I would agree with the adjudicator's proposal that Groupama should pay Mr J £100 compensation.

my final decision

My final decision is that I uphold this complaint in part, and require Groupama Insurance Company Limited to pay Mr J a sum of £100 to reflect the distress and inconvenience caused to him by its poor customer service.

I make no other award.

John Swain
ombudsman